



Kagogo & 3 others (Suing as the Joint Personal Representatives of the Estate of Kabogo Tharau - Deceased) v Mayenga & 3 others (Environment and Land Case 16 of 2020) [2025] KEELC 6419 (KLR) (30 January 2025) (Judgment)

Neutral citation: [2025] KEELC 6419 (KLR)

**REPUBLIC OF KENYA
IN THE ENVIRONMENT AND LAND COURT AT NAIROBI
ENVIRONMENT AND LAND CASE 16 OF 2020
J OMANGE, J
JANUARY 30, 2025**

BETWEEN

**MONICA WAMBUI KAGOGO 1ST PLAINTIFF
JOHN THARAO KABOGO 2ND PLAINTIFF
HEZEKIAH NJAGI KABOGO 3RD PLAINTIFF
GEORGE NGURE KABOGO 4TH PLAINTIFF
SUING AS THE JOINT PERSONAL REPRESENTATIVES OF THE ESTATE OF
KABOGO THARAU - DECEASED**

AND

**PHILIP ONDIEKI MAYENGA 1ST DEFENDANT
CONLET BITEKI KIKECHI 2ND DEFENDANT
EMBAKASI RANCHING CO. LTD 3RD DEFENDANT
THE CHIEF LAND REGISTRAR NAIROBI 4TH DEFENDANT**

JUDGMENT

1. The Plaintiffs brought this suit on behalf of the estate of Kabogo Tharao seeking various orders;
 - i. An order of Declaration that the Deceased is the legal shareholder, allottee and lessee of LR Nos 150/1272 and LR No 150/1273 of the Embakasi Ranching Company Limited Land.
 - ii. An order directing the Chief Land Registrar Nairobi to cancel the lease documents issued and executed by the 1st and 2nd Defendants for LR Nos 150/1272 and 150/1273 respectively



and Reissue of the said leases in the name of the late KABOGO THARAU (Deceased) for execution and Registration.

- iii. An order of the injunction restraining the Defendants, their servants and or agents from alienating disposing off, entering, effecting Registration of leases in the names of the 1st and 2nd Defendants or in any adverse manner interfering with LR NO 150/1272 and 150/1273 on the Embakasi Ranching Company Limited Land.
 - iv. Cost of this suit and interest.
 - v. Any other relieve the court may deem fit to grant.
2. The Plaintiffs deponed that sometime on 1/8/1978 the Deceased became a shareholder of the 3rd Defendant vide share certificate No 4606. On the 28/11/1982 he was issued with provisional allocation letter for 2 plots number E249 and E250 in the 3rd Defendants parcel of land LR NO 10904/2. The deceased paid the Engineering, survey fees and site visit fees.
 3. On the 20/3/2018, the 3rd Defendant called for the provisional allocation letter, engineering and survey receipts and allocated the deceased LR 105/1272 and 105/1273 together with bonus plots NO 136/14437 and 136/14439.
 4. It is the Plaintiffs case that when they visited the 3rd Defendants office to execute the documents for LR 105/1272 and LR 105/1273 they learned that the lease documents were in the names of the 2nd Defendant. The Plaintiffs contend that the land which had been allocated to them had been fraudulently allocated to the 1st and 2nd Defendants. They depone that the 3rd and 4th Defendant acted fraudulently by deleting the deceased's name from the register and inserting the names of the 1st and 2nd Defendants in the register and went further to prepare falsified leases for them. it is on this basis that the Plaintiffs seek an order for cancellation of the lease documents issued and executed by the 1st and 2nd Defendants for LR NO 105/ 1272 and LR NO 105/ 1273.
 5. The 1st and 3rd Defendant entered appearance but did not file any Defence. The 4th Defendant neither entered appearance nor filed a Defence. The 2nd Defendant filed a statement of Defence dated 14th December 2020 in which he deponed that he is a bona fide purchaser for value and hence was not party to any alleged fraud.
 6. The Plaintiffs were represented by George Ngure Kabogo who told the court his deceased father was a share holder of the 3rd Defendant vide certificate no 4606. On the 28th November 1982 he was issued with a provisional allocation letter for a plot then referred to as plot E249 and E 250. On the 1/11/2012, the deceased paid site visit fees and was shown 2 plots LR No 150/1272 and LR 150/1273. Each plot further earned a bonus plot no E 249B and E250B which became plot no LR 136/14438 and 136/14439.
 7. It was the evidence of the Plaintiffs that when they were called to go and execute the leases they found that the lease for LR 105/1272 and LR 105/ 1273 had been executed by the 1st and 2nd Defendant. He produced various documents in support of the Plaintiffs case including a share certificate no 4606, provisional letter of allocation of plot no E249 and E250, receipt for survey fees, receipt for civil engineering fees, site visit fees, and list of allocation.
 8. Upon cross examination, he insisted that Nairobi/ Block/ 105/1273 is E249 which had been allocated to his late father and was later fraudulently allocated to the 2nd Defendant. He said that he had not availed the map to prove that block 105/1273 was originally E249.



9. The 2nd Defendant testified in support of his case. He told the court that he bought the plot from Embakasi Ranching in 2006 and paid consideration of Kshs 32,000. He was then issued with a certificate dated 29th August, 2011 and later was issued with a certificate of lease. He conceded that the deceased was issued with Plot 249 but insisted that his title which was LR 105/1273 did not emanate from E 249. Upon cross examination he stated that he had not come across the allocation list, neither was he aware that his name appeared in a second list. He insisted that he was a non-member. He insisted he was not offered plot 249 and bought block 105/1273.
10. Both counsels have filed detailed submissions which the court has carefully considered. Arising from the pleadings, the evidence and the submissions, the following issues emerge for determination by the court;
 - a. Whether the court should issue a declaration that the deceased is the legal shareholder, allottee and lessor of LR NO 150/272 and LR 150/273
 - b. Whether an order should issue cancelling the lease documents issued and executed by the 1st and 2nd Defendants in respect of LR NO 150/272 and LR 150/273 and reissue the lease in the name of the late Kabogo Tharau
 - c. Whether the court should issue an order of injunction against the Defendants
11. It is not in dispute that the late Kabogo Tharau was a shareholder in the 3rd Defendant. A copy of share certificate number 4606 was produced to confirm this fact. It is equally not contested that vide provisional letter of allotment he was awarded plot E 249 and E 250. He also paid for a site visit and was issued with a receipt in which the plot number was clearly indicated. I have no hesitation in finding that Kabogo Tharau was allocated Plot E 249 and E 250 by the third Defendant and is entitled to two plots in the larger parcel owned by the 3rd Defendant.
12. For the court to issue a declaration that the deceased who I have found was allocated plot E249 and E250 is the owner of LR 150/272 and LR 150/273 the court must be satisfied that plot E 249 and E 250 are one and the same. The evidence presented in this regard is an extract from the website of the 3rd Defendant who did not attend court to dispute the contents of the website. The 2nd Defendant though stating that he had not come across the list did not deny that the list exists. The 2nd document that the Plaintiff sought to rely on was a receipt on for site visit in which the surveyor marked that the plot E 249 and E 250 were confirmed for title for LR 105/1273 and LR 105/1272.
13. On the lease presented by the 2nd Defendant the law is now fairly well settled.

Section 26 of the [Land Registration Act](#) provides

“The certificate of title issued by the Registrar upon registration, or to a purchaser of land upon a transfer or transmission by the proprietor shall be taken by all courts as prima facie evidence that the person named as proprietor of the land is the absolute and indefeasible owner, subject to the encumbrances, easements, restrictions and conditions contained or endorsed in the certificate, and the title of that proprietor shall not be subject to challenge, except— (a) on the ground of fraud or misrepresentation to which the person is proved to be a party; or (b) where the certificate of title has been acquired illegally, unprocedurally or through a corrupt scheme.

14. The courts have had occasion to give judicial interpretation on the approach that a court should take when a title is under challenge. The Court of Appeal in *Munyu Maina v Hiram Gathiha Maina* Civil Appeal No. 239 of 2009 [2013] eKLR, held that where the registered proprietor’s root title is under



challenge, it is not enough to dangle the instrument of title as proof of ownership. It is the instrument that is in challenge and therefore the registered proprietor must go beyond the instrument and prove the legality of the title and show that the acquisition was legal, formal and free from any encumbrance including interests which would not be noted in the register.

15. Similarly, in the case of *Funzi Development Ltd & Others v County Council of Kwale*, Mombasa Civil Appeal No.252 of 2005 [2014] eKLR the Court of Appeal, stated that:

“...a registered proprietor acquires an absolute and indefeasible title if and only if the allocation was legal, proper and regular. A court of law cannot on the basis of indefeasibility of title sanction an illegality or gives its seal of approval to an illegal or irregularly obtained title.”

16. In this case the 2nd Defendants case is that as non-member certificate no 022774 he purchased plot no V11719 from the 3rd Defendant. In the absence of any contrary evidence by the 3rd Defendant these documents on the face of them appear to emanate from the 3rd Defendant. However the most glaring issue with the lease of the defendant is that it was issued before the primary documents. The Supreme Court in the *Dina Management vs County Government of Mombasa* Pet 8 of 2021 stated that:

“...the title or lease is an end product of a process. If the process that was followed prior to issuance of the title did not comply with the law, then such a title cannot be held as indefeasible”

17. On this ground alone it is clear that the title held by the 2nd Defendant cannot stand. While he may not have been an active participant to the fraud section 26 (b) of the *Land Registration Act* allows challenge of a title on grounds that it has been illegally and un-procedurally acquired. Nothing can be more un-procedural than to acquire a title deed which precedes the primary documents.

18. In the end I find that the Plaintiffs have proved their case on a balance of probabilities and Judgement is that entered for the Plaintiff against the Defendants in the following terms ;

- a. A declaration is hereby issued that the deceased Kabogo Tharau is the legal shareholder, allottee and lessor of LR NO 150/1272 and LR 150/1273
- b. An order is hereby issued cancelling the lease documents issued and executed by the 1st and 2nd Defendants in respect of LR NO 150/1272 and LR 150/1273 and to be reissued in the name of the late Kabogo Tharau
- c. An order of permanent injunction is issued restraining the Defendants from alienating, disposing of, entering, effecting registration in the name of the 1st and 2nd Defendants or in any adverse manner interfering with LR 150/1272 and LR 150/ 1273
- d. The plaintiff shall have the costs of the suit.

JUDGMENT SIGNED, DATED AND DELIVERED VIA MICROSOFT TEAMS THIS 30TH DAY OF JANUARY 2025

JUDY OMANGE

JUDGE

In the presence of:

Ms Muhuhu for the Plaintiff



Mrs Arum for Nzaacho for 2nd Defendant

Court Assistant Meryline

